

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                                                       |                           |                                                        |                                               |                                 |
|---------------------------------------------------|---------------------------------------------------------------------------------------|---------------------------|--------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Leanne Fornelli                  | Team:<br>Squad #16                                                                    | CCRB Case #:<br>201601489 | <input type="checkbox"/> Force                         | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                                                                       |                           | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Monday, 02/22/2016 9:20 PM    | Location of Incident:<br>Cooper Street between Irving Avenue and Knickerbocker Avenue | 18 Mo. SOL<br>8/22/2017   | Precinct:<br>83                                        |                                               |                                 |
| Date/Time CV Reported<br>Wed, 02/24/2016 12:40 PM | CV Reported At:<br>CCRB                                                               | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Wed, 02/24/2016 12:40 PM |                                               |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. SGT Sean Honstetter | 01699  | 936777 | NARCBBN |
| 2. DT3 Steve LaFortune | 02570  | 928609 | NARCBBN |

| Witness Officer(s)   | Shield No | Tax No | Cmd Name |
|----------------------|-----------|--------|----------|
| 1. POM Jamar Goddard | 10440     | 948033 | NARCBBN  |
| 2. POM Joseph Kosek  | 01156     | 949175 | NARCBBN  |

| Officer(s)              | Allegation                                                                                               | Investigator Recommendation |
|-------------------------|----------------------------------------------------------------------------------------------------------|-----------------------------|
| A . DT3 Steve LaFortune | Abuse: Detective Steve LaFortune stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.  | A . Unsubstantiated         |
| B . DT3 Steve LaFortune | Abuse: Detective Steve LaFortune interfered with § 87(2)(b)'s ability to record an incident.             | B . Unsubstantiated         |
| C . DT3 Steve LaFortune | Discourtesy: Detective Steve LaFortune spoke discourteously to § 87(2)(b)                                | C . Unsubstantiated         |
| D . DT3 Steve LaFortune | Abuse: Detective Steve LaFortune frisked § 87(2)(b)                                                      | D . Substantiated           |
| E . DT3 Steve LaFortune | Abuse: Detective Steve LaFortune searched § 87(2)(b)                                                     | E . Unsubstantiated         |
| F . DT3 Steve LaFortune | Abuse: Detective Steve LaFortune searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants. | F . Unsubstantiated         |
| G . DT3 Steve LaFortune | Abuse: Detective Steve LaFortune detained § 87(2)(b)                                                     | G . Substantiated           |
| H . DT3 Steve LaFortune | Abuse: Detective Steve LaFortune detained § 87(2)(b)                                                     | H . Substantiated           |
| I . SGT Sean Honstetter | Abuse: Sergeant Sean Honstetter searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.  | I . Substantiated           |
| § 87(4-b) § 87(2)(g)    |                                                                                                          |                             |
|                         |                                                                                                          |                             |
|                         |                                                                                                          |                             |
|                         |                                                                                                          |                             |

### Case Summary

On February 22, 2016, at approximately 9:20 p.m., on Cooper Street between Irving Avenue and Knickerbocker Avenue in Brooklyn, § 87(2)(b) and § 87(2)(b) interacted with officers from Narcotics Borough Brooklyn North. On February 24, 2016, § 87(2)(b) filed this complaint with the Civilian Complaint Review Board (CCRB) via telephone on behalf of himself and § 87(2)(b) and the following allegations resulted:

Det. Steve LaFortune stopped the vehicle occupied by § 87(2)(b) and § 87(2)(b) (**Allegation A**), interfered with § 87(2)(b)'s ability to record the incident (**Allegation B**), spoke discourteously to § 87(2)(b) (**Allegation C**), and frisked and searched § 87(2)(b) (**Allegations D and E**). Det. LaFortune searched the vehicle occupied by § 87(2)(b) and § 87(2)(b) (**Allegation F**), and detained § 87(2)(b) and § 87(2)(b) (**Allegations G and H**). Sgt. Sean Honstetter searched the vehicle occupied by § 87(2)(b) and § 87(2)(b) (**Allegation I**). § 87(4-b) § 87(2)(g)

Neither § 87(2)(b) nor § 87(2)(b) were arrested or issued a summons as a result of the incident.

There is no available video footage of the incident.

§ 87(2)(g)

### Mediation, Civil and Criminal Histories

- § 87(2)(b) was offered mediation and opted for an investigation.
- As of May 19, 2016, no notice of claim had been filed in regard to the incident (Board Review 01).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### Civilian and Officer CCRB Histories

- § 87(2)(b) has filed two other cases with the CCRB (Board Review 03). § 87(2)(b)
  - This is the first CCRB case involving § 87(2)(b) (Board Review 04).
  - Det. LaFortune has been a member of service for 14 years and has 18 CCRB allegations pleaded against him in six other cases. § 87(2)(g)
- Two of the allegations were substantiated. In CCRB 201013036, the Board

substantiated and recommended charges for a vehicle stop, for which the NYPD disposition and penalty was instructions. In CCRB 201501960, the Board substantiated and recommended command discipline for an entry and search into a residence, for which the NYPD disposition and penalty are pending as of this writing.

- Sgt. Honstetter has been a member of service for eleven years and has three CCRB allegations pleaded against him in one other case. None of these allegations were substantiated § 87(2)(g).

### **Findings and Recommendations**

#### **Explanation of Subject Officer Identification**

Sgt. Honstetter (Board Review 05) denied any recollection of the incident, but his partner PO Joseph Kosek of Narcotics Borough Brooklyn North (Board Review 06), Det. LaFortune (Board Review 07) and PO Goddard (Board Review 08) placed Sgt. Honstetter at the scene.

§ 87(2)(g)

#### **Allegation Not Pleaded**

§ 87(2)(g)

#### **Allegation A – Abuse of Authority: Detective Steve LaFortune stopped the vehicle in which**

§ 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that Det. LaFortune stopped the vehicle occupied by § 87(2)(b) and § 87(2)(b) and that § 87(2)(b) received no summons for any traffic infraction. § 87(2)(g) § 87(2)(b) (Board Review 09) said that the officer identified via investigation as Det. LaFortune told him that he was stopped for crossing over the double yellow lines while driving. § 87(2)(b) denied doing this or committing any traffic infraction. § 87(2)(b) (Board Review 10) corroborated § 87(2)(b)'s testimony.

Det. LaFortune (Board Review 07) said that when his patrol vehicle was directly behind § 87(2)(b)'s minivan, he twice observed the minivan cross over the middle double yellow lines that divide the traffic lanes of Cooper Street, a two-way street. The first time was between Wilson Avenue and Central Avenue, and the second time was thirty seconds later between Knickerbocker Avenue and Irving Avenue. When the minivan crossed the lines, it did so for about a second each time. This indicated to Det. LaFortune that § 87(2)(b) could be intoxicated, and he pulled the vehicle over to investigate this and no other reason. The decision to conduct the vehicle stop was Det. LaFortune's alone. Det. LaFortune did not issue § 87(2)(b) a summons because he was able to determine during the stop that § 87(2)(b) was not intoxicated.

PO Goddard (Board Review 08), Det. LaFortune's partner, said that he did not see § 87(2)(b)'s car go over the double yellow line and was not paying attention, as he does not care about vehicle stops. PO Goddard was most likely looking at his phone. PO Goddard agreed that Det. LaFortune alone made the decision to stop the vehicle.

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation A** be closed as **Unsubstantiated**.

**Allegation B – Abuse of Authority: Detective Steve LaFortune interfered with § 87(2)(b)'s use of a recording device.**

§ 87(2)(g) § 87(2)(b) (Board Review 09) said that when Det. LaFortune instructed him to exit the car, he said that he wanted to retrieve his cellphone to record the incident. Det. LaFortune said, “Nah, get your ass out of here. Get the fuck out of here,” or “Nah that’s not going to happen,” or “Nah, that’s not going to fucking happen” (addressed below). Det. LaFortune then opened the door and guided § 87(2)(b) out of the vehicle. § 87(2)(b) (Board Review 10) agreed that § 87(2)(b) said that he wanted to record the incident, but § 87(2)(b) did not know if Det. LaFortune said anything in response. § 87(2)(b) mentioned that he could not hear everything that was occurring on the other side of the vehicle. § 87(2)(b) thought that Det. LaFortune seemed upset at the request because he then took § 87(2)(b) out of the vehicle.

Det. LaFortune (Board Review 07) said that § 87(2)(b) mentioned nothing about his cellphone and he could not recall § 87(2)(b) asking to record the interaction. Det. LaFortune denied telling § 87(2)(b) that he could not record or discouraging him in any way from recording. PO Goddard (Board Review 08) said that he thought that after § 87(2)(b) stepped out of the vehicle, he put his cellphone in Det. LaFortune’s face because he heard Det. LaFortune say, “I got you stopped. Can you please get that phone out of my face? I’m talking to you as a man.” § 87(2)(b) said, “Okay.” PO Goddard said that he did not see § 87(2)(b) put his cellphone close to Det. LaFortune’s face or put away the phone, as he was on the other side of the vehicle. PO Goddard said that § 87(2)(b) did not ask to record the interaction and he did not hear Det. LaFortune say that § 87(2)(b) could not record or otherwise discourage § 87(2)(b) in any way from recording.

§ 87(2)(g) [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED] It is therefore recommended that **Allegation B** be closed as **Unsubstantiated**.

**Allegation C – Discourtesy: Detective Steve LaFortune spoke discourteously to § 87(2)(b)**

§ 87(2)(g) § 87(2)(b) (Board Review 09) said that when Det. LaFortune instructed him to exit his vehicle, § 87(2)(b) did not immediately comply and explained to Det. LaFortune that he wanted to retrieve his cellphone to record the incident. Initially, § 87(2)(b) said that Det. LaFortune stated, “Nah, get your ass out of here. Get the fuck out of here.” § 87(2)(b) then said that Det. LaFortune stated, “Nah, that’s not going to happen.” § 87(2)(b) then said that Det. LaFortune said, “Nah, that’s not going to fucking happen.” § 87(2)(b) said that Det. LaFortune’s statement definitely contained the word “fucking.” § 87(2)(b) (Board Review 10) did not allege this, and said that he could not clearly hear everything that occurred on the other side of the car between § 87(2)(b) and Det. LaFortune.

§ 87(2)(b) said that when he was handcuffed at the rear of the vehicle, he complained and asked if he was under arrest. § 87(2)(b) said that Det. LaFortune stated, “Shut the fuck up. You’re making it worse for yourself.” § 87(2)(b) said that when he complained about Det. LaFortune searching the vehicle, Det. LaFortune stated, “You’re just making it worse on yourself. If you just shut the fuck up, you know, we’d be out of here.” § 87(2)(b) did not allege these statements.

Det. LaFortune (Board Review 07) denied saying, “Get the fuck out of here,” or “That’s not going to fucking happen,” and could not recall saying, “shut the fuck up,” using the word “fuck” in any context or using profanity. PO Goddard (Board Review 08) denied hearing Det. LaFortune make the alleged statements.

§ 87(2)(g)  
it is recommended that **Allegation C** be closed as **Unsubstantiated**.

**Allegation D – Abuse of Authority: Detective Steve LaFortune frisked** § 87(2)(b)

It is undisputed that Det. LaFortune patted down § 87(2)(b) § 87(2)(g). Det. LaFortune (Board Review 07) said that when § 87(2)(b) stepped out of the car, he had a good view of him. Det. LaFortune could not recall if he saw any bulges on § 87(2)(b) and could not recall seeing anything resembling a weapon. Det. LaFortune said that he patted down § 87(2)(b) because of the movements he saw him making when he initially pulled over the vehicle and his initial noncompliance. Det. LaFortune said that when he approached the vehicle, § 87(2)(b) made movements in between the driver’s and front passenger’s seats, where the center console was located, as if he was reaching for something. Det. LaFortune could not see this area from where he stood at the driver’s door. This caused Det. LaFortune to be suspicious and concerned for his safety, as he did not know what § 87(2)(b) was doing with his hands. Furthermore, § 87(2)(b) refused to entirely roll down his window, which was tinted and prevented Det. LaFortune from seeing into the vehicle. Det. LaFortune asked to see § 87(2)(b)’s hands, and he was initially noncompliant by continuing the movements. Det. LaFortune asked § 87(2)(b) for his driver’s license, which he provided after the second or third request. § 87(2)(b) continued to make the movements near the center console area until he exited the vehicle.

PO Goddard (Board Review 08) corroborated Det. LaFortune’s testimony that the side windows of the vehicle were tinted, and that § 87(2)(b) refused to roll them down entirely. PO Goddard did not mention any movements that § 87(2)(b) made in the vehicle. PO Goddard said that Det. LaFortune requested § 87(2)(b)’s driver’s license after he stepped out of the vehicle, and did not mention any noncompliance.

To justify a frisk of a driver or passenger during a vehicle stop, the officer must harbor reasonable suspicion that the person subjected to the frisk is armed and dangerous, Arizona v. Johnson, 129 S. Ct. 781 (2009) (Board Review 11).

§ 87(2)(g)  
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§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation D** be closed as *Substantiated*.

**Allegation E – Abuse of Authority: Detective Steve LaFortune searched** § 87(2)(b)

§ 87(2)(g) . § 87(2)(b) (Board Review 09) alleged that Det. LaFortune placed his finger inside one of his shoes, and he could not recall which. § 87(2)(b) (Board Review 10) did not allege this, or any frisk or search of either he or § 87(2)(b) § 87(2)(b)

Det. LaFortune (Board Review 07) denied placing his finger in § 87(2)(b)'s shoe, which PO Goddard (Board Review 08) corroborated.

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as *Unsubstantiated*.

**Allegation F – Abuse of Authority: Detective Steve LaFortune searched the vehicle in which**

§ 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(g) . § 87(2)(b) (Board Review 09) alleged that when he and § 87(2)(b) were at the back of his minivan, Det. LaFortune leaned inside the driver's side of the vehicle through the rear sliding door with his flashlight so that half of his body was inside. § 87(2)(b) could not say where in the minivan Det. LaFortune searched. Det. LaFortune then went around the back of the minivan and opened the passenger's door. Det. LaFortune did not open the trunk. Det. LaFortune was in the van for about ten minutes in total. Det. LaFortune then got on his cellphone and entered the patrol car. When Det. LaFortune went toward the car again, § 87(2)(b) protested and asked if he was going to search for a second time. Det. LaFortune placed § 87(2)(b) and § 87(2)(b) in handcuffs (addressed below), and searched the minivan for a second time and entered each door. § 87(2)(b) could not recall how long the second search took.

§ 87(2)(b) (Board Review 10) corroborated that Det. LaFortune searched the minivan, but said that when Det. LaFortune first approached the car, § 87(2)(b) asked what he was doing and Det. LaFortune stated his intention to search the car. When § 87(2)(b) protested, both he and § 87(2)(b) were placed in handcuffs. At this time, Det. LaFortune entered the minivan from the driver's side for about three to five minutes. § 87(2)(b) could not see where Det. LaFortune looked inside the minivan.

Det. LaFortune (Board Review 07) denied ever entering the minivan and to his knowledge, no search of the minivan was conducted. PO Goddard (Board Review 08) corroborated Det. LaFortune's testimony.

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as *Unsubstantiated*.

**Allegation G – Abuse of Authority: Detective Steve LaFortune detained § 87(2)(b)**

**Allegation H – Abuse of Authority: Detective Steve LaFortune detained § 87(2)(b)**

§ 87(2)(b) (Board Review 09) alleged that when Det. LaFortune approached the minivan for a second time, he asked Det. LaFortune if he was going to conduct a second vehicle search. Det. LaFortune told § 87(2)(b) that he was making him nervous and placed him in handcuffs. § 87(2)(b) was also handcuffed, and he thought PO Goddard did this, but was not certain. The handcuffs were removed from § 87(2)(b) and § 87(2)(b) at the conclusion of the incident after the sergeant identified via investigation as Sgt. Honstetter arrived to the scene.

§ 87(2)(b) (Board Review 10) corroborated § 87(2)(b)'s testimony, but said this occurred when Det. LaFortune approached the vehicle to search it the first time and said that Det. LaFortune also handcuffed him. § 87(2)(b) could not recall the reason Det. LaFortune gave for handcuffing them, but he mentioned that § 87(2)(b) and § 87(2)(b) had been fidgeting.

Det. LaFortune (Board Review 07) said that before § 87(2)(b) exited the car, he established that § 87(2)(b) was not intoxicated, which he originally suspected when he saw the vehicle twice cross over the double lines. § 87(2)(b) and § 87(2)(b) were never considered under arrest and they were not handcuffed at any time. PO Goddard (Board Review 08) corroborated Det. LaFortune's testimony. Sgt. Honstetter (Board Review 05), who later arrived at the scene, denied any recollection of the incident. PO Kosek (Board Review 06), Sgt. Honstetter's partner, said that he was inside his patrol vehicle with a prisoner, identified via investigation as § 87(2)(b) at whom he never stopped looking, and therefore saw no part of the incident.

An officer must have reasonable suspicion that criminal activity is afoot to justify a stop involving the physical seizure of an individual, which is defined as a significant interruption with an individual's liberty of movement, People v. De Bour, 386 N.Y.S.2d 375 (Ct. of Appeals 1976) (Board Review 12).

§ 87(2)(g)  
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\_\_\_\_\_ It is therefore recommended that

**Allegations G and H be closed as *Substantiated*.**

**Allegation I – Abuse of Authority: Sergeant Sean Honstetter searched the vehicle in which**

**§ 87(2)(b) and § 87(2)(b) were occupants.**

§ 87(2)(g) § 87(2)(b) (Board Review 09) said that at the conclusion of the incident, an unmarked minivan occupied by an officer identified via investigation as Sgt. Honstetter arrived to the scene. Sgt. Honstetter exited the patrol vehicle by himself and without first saying anything, immediately approached and entered the sliding door of § 87(2)(b)'s minivan on the driver's side. Sgt. Honstetter searched the vehicle for five to seven minutes, also going to the passenger's side sliding door. At this time, § 87(2)(b) Det. LaFortune and PO Goddard stood at the rear of § 87(2)(b)'s vehicle. § 87(2)(b) (Board Review 10) corroborated § 87(2)(b)'s testimony.

Sgt. Honstetter (Board Review 05) denied any recollection of the incident. Det. LaFortune (Board Review 07) said that Sgt. Honstetter arrived to the scene, but he could not recall what Sgt. Honstetter did, or when he arrived or left. PO Goddard (Board Review 08) said

that Sgt. Honstetter shined his flashlight into the vehicle as he stood at the open driver's door, but never entered or searched it. PO Kosek (Board Review 06) said that he was inside his patrol vehicle with § 87(2)(b) at whom he never stopped looking, and therefore saw no part of the incident. PO Kosek denied seeing Sgt. Honstetter search a vehicle at the scene.

To meet the automobile exception to the warrant requirement, an officer must have probable cause to arrest the occupant and reason to believe that the car may contain evidence of the crime for which the occupant was arrested, People v. Carbone, 585 N.Y.S.2d 68 (1992) (Board Review 13).

It is therefore recommended that **Allegation I** be closed as **Substantiated**.

§ 87(2)(g), § 87(4-b)



Signature

Print

Date

Title/Signature \_\_\_\_\_ Print \_\_\_\_\_ Date \_\_\_\_\_

\_\_\_\_\_  
 Title/Signature                      Print                      Date